

Tinku Bhati alias Tinku Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 July 2014 · Criminal Misc. Writ Petition No. 11166 of 2014 · **FIR quash refused; arrest to follow CrPC 41/41-A; compounding under Supply Code left to petitioner.**

HEADNOTE

A Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003 because it disclosed a cognizable offence. Arrest not having been made, the Court directed that if arrest is to be effectuated for an offence not entailing more than seven years' sentence, police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the petitioner may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Tinku Bhati alias Tinku Singh filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash FIR dated 5 June 2014, Case Crime No. 756 of 2014, registered under Section 135 of the Electricity Act, 2003 at Police Station Shahibabad, District Ghaziabad. He had not been arrested. He apprehended that police would arrest him in breach of Section 41(1)(b) read with Section 41-A Cr.P.C., and argued that the alleged offence was compoundable and could not attract a sentence of more than seven years.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s135-fir-quash-arrest-compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed. Where arrest has not yet been made and the offence will not entail a sentence of more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Quash of a s.135 FIR refused; any arrest for a sub-seven-year offence must follow CrPC 41(1)(b)/41-A, and compounding if available is to be sought under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

The Court only pointed the petitioner to the Supply Code, 2005 if the offence is compoundable. ¶ 1